

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2202947

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: SOFI LENDING CORP.

vs.

DEFENDANT: KERRY ATKINSON

NATURE OF PROCEEDINGS: MOTION – ENTRY OF JUDGMENT

RULING

Plaintiff filed a motion for entry of judgment following a settlement agreement executed in 2024. Under the terms of the agreement, Defendant acknowledged that she owed Plaintiff \$10,087.50 plus costs. The parties further stipulated to entry of judgment to be stayed pending monthly payments of at least \$231, for a total of \$5,548.13, but that if Defendant defaulted, the full amount would be due less any payments. Plaintiff provided a declaration indicating that only one payment of \$231 was made.

Plaintiff provided notice of the motion to Defendant and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants the motions in light of the non-opposition and shall enter judgment in favor of Plaintiff and against Defendant in the amount of \$9856.50 plus costs.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNzEGafG.1>

Meeting ID: 161 548 7764
Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2300516

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: HYPERCONSTRUCT CO., ET AL vs. DEFENDANT: SHAW WALTERS	
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NATURE OF PROCEEDINGS: MOTION – COMPEL

RULING

Continued to November 18, 2026 at 1:30 pm.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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